

Opinion of the Court.

114 U. S. 233; *Marshall v. Holmes*, 141 U. S. 589; *Greene v. Greene*, 2 Gray, 361; *Ross v. Wood*, 70 N. Y. 8; *Ward v. Southfield*, 102 N. Y. 287; *Sanders v. Soutter*, 126 N. Y. 193; *Price v. Dewhurst*, 8 Sim. 279; *Ochsenbein v. Papelier*, L. R. 8 Ch. 695.

III. The point made by the plaintiffs in error that France does not enforce judgments of foreign states against its own subjects is wholly immaterial.

While the efficacy of foreign judgments rests partly on principles of comity, or friendly dealing between nations at peace, or was formerly held to do so, the modern doctrine of their conclusiveness rests on the same general ground of public policy which makes domestic judgments equally conclusive, viz.: that the public interest is that there be an end of litigation — that one fair chance to prove his cause to be just, in a competent court, is all that the good of society or the general principles of justice demand or permit a litigant to enjoy.

Nor should the well-grounded and consistent principles of our law be marred by introducing under the cover of "comity" the principle of "retaliation." That principle has been repudiated as a ground of decision by this court where the law of this country is positive and established. *The Scotland*, 105 U. S. 24. See also *Baker v. Palmer*, 83 Illinois, 568; *Cross v. United States Trust Co.*, 131 N. Y. 330; *Dammert v. Osborn*, 140 N. Y. 30.

Mr. George A. Black, by leave, filed a brief on behalf of Bailey and others, to which *Mr. Choate* and *Mr. Shipman* filed suggestions in reply.

MR. JUSTICE GRAY, after stating the case, delivered the opinion of the court.

These two cases, the one at law and the other in equity, of *Hilton v. Guyot*, and the case of *Ritchie v. McMullen* which has been under advisement at the same time, present important questions relating to the force and effect of foreign judgments, not hitherto adjudicated by this court, which have been argued

Opinion of the Court.

with great learning and ability, and which require for their satisfactory determination a full consideration of the authorities. To avoid confusion in indicating the parties, it will be convenient first to take the case at law of *Hilton v. Guyot*.

International law, in its widest and most comprehensive sense — including not only questions of right between nations, governed by what has been appropriately called the law of nations; but also questions arising under what is usually called private international law, or the conflict of laws, and concerning the rights of persons within the territory and dominion of one nation, by reason of acts, private or public, done within the dominions of another nation — is part of our law, and must be ascertained and administered by the courts of justice, as often as such questions are presented in litigation between man and man, duly submitted to their determination.

The most certain guide, no doubt, for the decision of such questions is a treaty or a statute of this country. But when, as is the case here, there is no written law upon the subject, the duty still rests upon the judicial tribunals of ascertaining and declaring what the law is, whenever it becomes necessary to do so, in order to determine the rights of parties to suits regularly brought before them. In doing this, the courts must obtain such aid as they can from judicial decisions, from the works of jurists and commentators, and from the acts and usages of civilized nations. *Fremont v. United States*, 17 How. 542, 557; *The Scotia*, 14 Wall. 170, 188; *Respublica v. De Longchamps*, 1 Dall. 111, 116; *Moultrie v. Hunt*, 23 N. Y. 394, 396.

No law has any effect, of its own force, beyond the limits of the sovereignty from which its authority is derived. The extent to which the law of one nation, as put in force within its territory, whether by executive order, by legislative act, or by judicial decree, shall be allowed to operate within the dominion of another nation, depends upon what our greatest jurists have been content to call "the comity of nations." Although the phrase has been often criticised, no satisfactory substitute has been suggested.

"Comity," in the legal sense, is neither a matter of absolute

Opinion of the Court.

obligation, on the one hand, nor of mere courtesy and good will, upon the other. But it is the recognition which one nation allows within its territory to the legislative, executive or judicial acts of another nation, having due regard both to international duty and convenience, and to the rights of its own citizens or of other persons who are under the protection of its laws.

Mr. Justice Story, in his Commentaries on the Conflict of Laws, treating of the question in what department of the government of any State, in the absence of any clear declaration of the sovereign will, resides the authority to determine how far the laws of a foreign State shall have effect, and observing that this differs in different States, according to the organization of the departments of the government of each, says: "In England and America, the courts of justice have hitherto exercised the same authority in the most ample manner: and the legislatures have in no instance (it is believed) in either country interfered to provide any positive regulations. The common law of both countries has been expanded to meet the exigencies of the times as they have arisen; and so far as the practice of nations, or the *jus gentium privatum*, has been supposed to furnish any general principle, it has been followed out." Story's Conflict of Laws, §§ 23, 24.

Afterwards, speaking of the difficulty of applying the positive rules laid down by the Continental jurists, he says that "there is indeed great truth" in these remarks of Mr. Justice Porter, speaking for the Supreme Court of Louisiana: "They have attempted to go too far, to define and fix that which cannot, in the nature of things, be defined and fixed. They seem to have forgotten that they wrote on a question which touched the comity of nations, and that that comity is, and ever must be, uncertain; that it must necessarily depend on a variety of circumstances which cannot be reduced to any certain rule; that no nation will suffer the laws of another to interfere with her own to the injury of her citizens; that whether they do or not must depend on the condition of the country in which the foreign law is sought to be enforced, the particular nature of her legislation, her policy, and the char-

Opinion of the Court.

acter of her institutions; that in the conflict of laws it must often be a matter of doubt which should prevail; and that, whenever a doubt does exist, the court, which decides, will prefer the laws of its own country to that of the stranger." Story's Conflict of Laws, § 28; *Saul v. His Creditors*, (1827) 5 Martin (N. S.) 569, 596.

Again: Mr. Justice Story says: "It has been thought by some jurists that the term *comity* is not sufficiently expressive of the obligation of nations to give effect to foreign laws when they are not prejudicial to their own rights and interests. And it has been suggested that the doctrine rests on a deeper foundation; that it is not so much a matter of comity or courtesy, as a matter of paramount moral duty. Now, assuming that such a moral duty does exist, it is clearly one of imperfect obligation, like that of beneficence, humanity and charity. Every nation must be the final judge for itself, not only of the nature and extent of the duty, but of the occasions on which its exercise may be justly demanded." And, after further discussion of the matter, he concludes: "There is then not only no impropriety in the use of the phrase 'comity of nations,' but it is the most appropriate phrase to express the true foundation and extent of the obligation of the laws of one nation within the territories of another." Story's Conflict of Laws, §§ 33-38.

Chief Justice Taney, likewise, speaking for this court while Mr. Justice Story was a member of it, and largely adopting his words, said: "It is needless to enumerate here the instances in which, by the general practice of civilized countries, the laws of the one will, by the comity of nations, be recognized and executed in another, where the rights of individuals are concerned." "The comity thus extended to other nations is no impeachment of sovereignty. It is the voluntary act of the nation by which it is offered, and is inadmissible when contrary to its policy, or prejudicial to its interests. But it contributes so largely to promote justice between individuals, and to produce a friendly intercourse between the sovereignties to which they belong, that courts of justice have continually acted upon it, as a part of the voluntary law of nations." "It is not the comity of the courts, but the comity